

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 9, 2026
8:30 a.m./1:30 p.m.

2. CHERYL BENTON V. RANDALL BENTON

24FL1158

On April 14, 2026, Petitioner filed a Request for Order (RFO) seeking a stay of the Family Law Attorney's Real Property Lien. All required documents were mail served on April 20th.

Respondent filed and served his Responsive Declaration to Request for Order on June 25th.

Petitioner is objecting to, and asking the court to stay recordation of, the "Family Law Attorney's Real Property Lien" (hereinafter the "Lien"). She notes deficiencies in the lien and states that it should not be recorded because Respondent has sufficient assets with which to pay his attorneys.

Respondent asks the court to deny the requested stay. He states he has corrected the procedural deficiencies in the Lien and he argues that the community has sufficient interest in the property to allow for the Lien to attach to only his interest therein.

Family Code § 2033 allows either party to encumber his or her interest in community real property to pay reasonable attorney's fees. Fam. Code § 2033(a). The lien attaches only to that party's interest in the community property. *Id.* Where the encumbrance would likely result in an unequal division of property, impair the encumbering party's ability to meet community obligations, or would otherwise be unjust, Family Code § 2034 allows for the limitation, or outright denial, of the lien. Fam. Code § 2034(a).

After reviewing the filings of the parties as well as the supporting documents submitted, the court does not find that the Lien, with an amount not to exceed \$45,000, is likely to result in an unequal division of property as Respondent's portion of the community interest is sufficient to cover the requested amount. As such, the motion to stay the Lien is denied.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: THE REQUEST TO STAY THE REAL PROPERTY LIEN IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE

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TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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3. BRITINI JOHNSON V. PATRICK JOHNSON

23FL1116

On April 17, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders and child support orders. There is no Proof of Service for the RFO or any of the other required documents, nevertheless, Petitioner filed and served her Responsive Declaration to Request for Order on May 6th thereby waiving any potential objection to service.

The parties attended Child Custody Recommending Counseling (CCRC) on May 15, 2026. They reached some agreements but could not agree on all issues therefore, a report with agreements and recommendations was prepared on May 18, 2026. It was mailed to the parties on May 19th.

Petitioner filed her Income and Expense Declaration on June 3, 2026. It was served the same day.

On June 23rd, Respondent filed another Income and Expense Declaration and a declaration. There is no Proof of Service for either document.

Also on June 23rd, Petitioner filed and served Petitioner's Objection to Respondent's Reply Declaration and Respondent's [sic] Reply Declaration to CCRC Report Dated 5/18/2026.

Because Petitioner filed an objection to Respondent's June 23rd declaration but did not raise the issue of service, the court finds that she has actual knowledge of the declaration and any such objection to service has been waived therefore, the court is considering the declaration to the extent Petitioner's objections have not been sustained. The same does not go for Respondent's Income and Expense Declaration. There is no indication that Petitioner was ever served with that document therefore the court cannot consider it.

Petitioner's objections are sustained in their entirety. The court is considering only the admissible portions of the first five pages of Respondent's reply declaration.

On June 30th, Respondent filed a Reply Declaration of Patrick Johnson in Support of Request for Order. It was served by mail on June 29th.

Respondent asks to change the parenting schedule in accordance the proposed schedule in his declaration. He asks that the holiday schedule and all other custody orders remain the same. He further requests modification of child support based on the updated